IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-514
CP (CAA) No.-34/230/232/ND/2022

IN THE MATTER OF:
Bikano Foods Pvt. Ltd. And Bikanerwala Foods Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 10.11.2022**

CORAM:
SHRI BACHU VENKAT BALARAMA DAS,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Arun Saxena, Ms. Sanu Pastore, Advs.
For the Respondent	:
For the IT Deptt.	: Mr. Zoheb Hossain, Sr. St. Counsel, Mr. Parth Semwal, Mr. Vipul Agrawal, Jr. St. Counsel for Revenue
For the RD	: Ms. Shankari Mishra, Mr. Sumeet Kaul, Advs.
For the OL	: Ms. Hemlata Rawat, Adv.

ORDER

We have heard Ld. Counsel for the Applicant as well as Ld. Counsel for the Income Tax Department and Ld. Counsel for the OL as well as Ld. Counsel for the RD. Ld. Counsel for the Income Tax Department has submitted that the Transferee Company has tax dues of around Rs. 43lacs. Ld. Counsel for the Applicant has submitted that these dues are under rectification before the Income Tax authority. Ld. Counsel has also submitted that they have already clarified in the scheme of arrangement that whatever the tax dues the Transferee Company will be bound to pay as per law.

Ld. Counsel for RD has submitted that they have made certain observations in their report to which Ld. Counsel for Applicant has submitted

that they have filed their reply to their observations. It appears that the RD would like to argue the matter with the Applicant with regard to their observations.

Ld. Counsel for OL has submitted that they have no objection to the proposal. List the matter on **28.11.2022.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(BACHU VENKAT BALARAMA DAS)
MEMBER (J)

Amit Tiwari